

MEMORANDUM OF AGREEMENT FOR DEPOSIT OF PUBLIC FUNDS

This Agreement is made on the 10th day of January 2022 by and between **Westfield Bank, FSB** ("Bank"), a federal savings bank organized under the laws of the United States, and Brecksville-Broadview Heights City School District ("Depositor").

Section 1. Depositor hereby designates Bank as a public depository for Depositor's active, interim and inactive deposits, where appropriate, during the period beginning January 10, 2022, to and including February 1, 2026.

Section 2. Bank hereby agrees:

- (a) to accept for deposit up to a maximum amount of **\$15,000,000.00** at any one time during this period of designation in any active, interim or inactive deposits. This amount does not exceed the limitations set forth in Chapter 135 of the Ohio or Revised Code, or 30% of Bank's total assets.
- (b) to hold said deposits subject to all terms and conditions set forth in the Ohio Uniform Depository Act, Ohio Revised Code Chapter 135.
- (c) to furnish Depositor a monthly statement during any time that the Bank holds any active, interim or inactive deposits, showing the activity and balance of funds on deposit in any account for which such a statement is customarily issued.
- (d) in order to secure the performance of its obligations hereunder, to pledge and deposit with a designated trustee, at the option of the Bank, either eligible securities or a pool of eligible securities in accordance with the provisions of Chapter 135 of the Ohio Revised Code.
- (e) to comply with the provisions of Chapter 135 of the Ohio Revised Code and all amendments and supplements thereto.

Section 3. Depositor hereby agrees:

- (a) to comply with all the rules and regulations governing the deposit accounts into which the Depositor's active, interim and inactive deposits are deposited.
- (b) to provide Bank the names and signatures of those persons authorized to execute drafts on and make withdrawals from the account(s), and to provide documentation evidencing such authority as Bank may request.
- (c) that Bank may designate, at its option, the manner in which the active, interim and inactive deposits of Depositor will be secured in accordance with Chapter 135 of the Ohio Revised Code and all amendments and supplements thereto

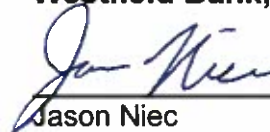
By: _____

Craig Yaniglos

Treasurer / CFO of Brecksville-Broadview Heights City School District

By: _____

Westfield Bank, FSB



Jason Niec

Commercial Banking Development Officer

Westfield Bank